

Court No. - 21

Case :- WRIT - C No. - 11935 of 2023

Petitioner :- Kunil

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Dinesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Learned counsel for the petitioner submits that the meter at the petitioner's premises was installed in June 2018 and the petitioner had duly paid bills upto July, 2019. The impugned recovery of Rs.29 lakhs and odd issued in July 2019 is ex facie illegal and amounts to sheer harassment.

Respondent no.3 to file his personal affidavit and explain how the impugned bill has been issued and in case he finds that the bill is incorrect, he would withdraw the same before the next date fixed in the case.

Put up as fresh on 26.04.2023.

Sri Pranjal Mehrotra, learned counsel for the respondent Electricity Department shall communicate the instant order to respondent no.3 for due compliance.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 11.4.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The instant petition has been filed praying for quashing of the demand notice dated 14.05.2019 issued by respondent no. 3 and 4 for recovery of a sum of Rs. 29,96,012/- from the petitioner in a case of theft of electricity. The petitioner has also challenged the recovery citation dated 18.07.2019 issued by the respondents for recovery of the aforesaid amount.

Shri Raj Kumar Mishra, learned counsel for the respondent-Electricity Department on instructions admits that there is no order of final assessment in existence and submits that in case, any objection is filed by the petitioner against the notice of provisional assessment, the same will be decided.

Having regard to the aforesaid factual position, we hereby quash the demand notice and the recovery citation. The respondent shall serve the inspection report and notice of provisional assessment upon the petitioner within two weeks from today and the petitioner will be granted fifteen days' time to file objections and thereafter, it shall become open to the concerned respondent to finalise the proceedings strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands **disposed of**.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.4.2023

Rama Kant